

STATE OF NEW YORK

3820--A

2025-2026 Regular Sessions

IN SENATE

January 30, 2025

Introduced by Sens. RIVERA, GIANARIS, BRISPORT, FERNANDEZ, HINCHEY, HOYLMAN-SIGAL, KRUEGER, MAYER, PERSAUD, RAMOS, STAVISKY, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Insurance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the insurance law, in relation to requiring health insurance policies include coverage for anesthesia for the duration of a medical procedure

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subsection (i) of section 3216 of the insurance law is amended by adding a new paragraph 41 to read as follows:

(41) Every policy that provides coverage for hospital, surgical or medical care shall provide the coverage for anesthesia for the entire duration of a procedure for which a licensed medical practitioner has issued an order for such anesthesia.

§ 2. Subsection (l) of section 3221 of the insurance law is amended by adding a new paragraph 23 to read as follows:

(23) Every insurer delivering a group or blanket policy or issuing a group or blanket policy for delivery in this state that provides coverage for hospital, surgical or medical care shall provide the coverage for anesthesia for the entire duration of a procedure for which a licensed medical practitioner has issued an order for such anesthesia.

§ 3. Section 4303 of the insurance law is amended by adding a new subsection (ww) to read as follows:

(ww) A medical expense indemnity corporation, a hospital service corporation or a health service corporation that provides coverage for hospital, surgical or medical care shall provide the coverage for anesthesia for the entire duration of a procedure for which a licensed medical practitioner has issued an order for such anesthesia.

§ 4. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD08023-03-5